

		the circumstances of the accident with exactitude. The conditions on which the expert's analysis rests must simply be “substantially similar” to those of the actual occurrence. <i>Pannu v. Land Rover North America, Inc.</i>, (2011) 191 Cal.App.4th 1298, 1318. Photographs of the accident scene, although “highly pertinent” evidence (<i>People v. Turner</i> (1990) 50 Cal.3d 668, 706) must be made under “substantially similar”—but not necessarily identical—conditions. <i>Anello v. Southern Pacific Co.</i> (1959) 174 Cal.App.2d 317, 323. “The standard that must be met in determining whether the proponent of the experiment has met the burden of proof of establishing the preliminary fact essential to the admissibility of the experimental evidence is whether the conditions were substantially identical, not absolutely identical.” <i>Culpepper v. Volkswagen of America, Inc.</i> (1973) 33 Cal.App.3d 510, 521. It is too soon at the discovery stage to foreclose Plaintiff’s inquiry. The admissibility of evidence derived from the inspection can be determined at trial. For all the above reasons, the motion is denied. Plaintiff is awarded sanctions in the amount of \$1,985 against Defendant, to be paid within 30 days. Plaintiff to give notice.
111	2023-01345045 Xing vs. Cao	Motion to Compel Arbitration Defendant Pingchao Cao’s motion to compel arbitration of Plaintiff Jianyong Xing claims in his Second Amended Complaint is continued to June 9, 2025 at 2:00 pm in Dept. C27. Defendant moves for an order to compel Plaintiff to arbitrate his claims before the Shijiazhuang Arbitration Commission under the laws of the People’s Republic of China, and to dismiss this lawsuit. Counsel for Plaintiff filed a declaration in opposition stating that he is moving to withdraw as counsel because he has lost contact with his client who he believes resides in China. (Sipprelle Decl., ¶¶ 2-3.) He states that because he has lost all contact with Plaintiff he has been unable to obtain the information and documentation which would be necessary to oppose Defendant’s motion to compel arbitration, and believes it would be manifestly unjust for the Court to proceed with the hearing on Defendant’s motion to compel arbitration as scheduled. (Sipprelle Decl., ¶ 4.) Counsel currently has a motion to be relieved scheduled for July 14, 2025. The Court finds that under these circumstances the interests of justice will be best served by continuing the hearing on the motion to compel arbitration, and advancing the hearing on the motion to withdraw as counsel. No prejudice to Defendant has been demonstrated that would result from a brief continuance of his motion. Plaintiff counsel’s motion to be relieved as counsel of record is advanced to this date and continued to May 19, 2025 at 2:00 p.m. in Department C27. Plaintiff’s counsel is ordered to give notice of all rulings to all parties, including his client at his last known address(es).